

10	Technology Insurance Company Inc vs. Ital Pizza LLC 2023-01339446	Motion for Entry of Judgment Plaintiff moves for Entry of Judgment on Settlement Agreement Code of Civil Procedure section 664.6 states, “(a) If parties to pending litigation stipulate, in a writing signed by the parties outside of the presence of the court or orally before the court, for settlement of the case, or part thereof, the court, upon motion, may enter judgment pursuant to the terms of the settlement. If requested by the parties, the court may retain jurisdiction over the parties to enforce the settlement until performance in full of the terms of the settlement.” On 1/5/26, Plaintiff filed a notice of conditional settlement based on the parties’ agreement in which Defendants agreed to make 12 monthly payments of \$3,750 commencing 1/15/25. The settlement agreement provided for the Court to retain jurisdiction under Code of Civil Procedure section 664.6. (Ex. A, ¶ 3(C).) Plaintiff’s counsel declares that Defendants made \$7,500 in payments then ceased making the remaining payments. Defendants have not responded to Plaintiff’s counsel’s notice of default and Defendants have not filed an opposition to the motion. Tentative Ruling: Plaintiff’s Motion for Entry of Judgment on Settlement Agreement is GRANTED. The Court enters judgment pursuant to the parties’ settlement agreement attached as Exhibit A to the motion.
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11	Truong vs. Le 2020-01149479	Motion for Attorney Fees Defendant Phillip Bui Le moves for Attorneys’ Fees and Costs After Judgment. . Defendant seeks \$49,259.50 in attorneys’ fees and \$11,690.94 in costs for a total of \$60,950.44 in connection with his defense of Plaintiff’s partition action. (Defendant erroneously requests a total of \$60,960.44.) <u><i>Legal standard</i></u> The costs of partition include, among other items, the “[r]easonable attorney’s fees incurred or paid by a party for the common benefit,” and “[o]ther disbursements or expenses determined by the court to have been incurred or paid for the common benefit.” (Code Civ. Proc., § 874.010, subds. (a), (e).) The costs of partition also include “reasonable expenses, including attorney’s fees, necessarily incurred by a party for the common benefit in prosecuting or defending other actions or other proceedings for the protection, confirmation, or perfection of title” (Code Civ. Proc., § 874.020.) “[T]he ‘common benefit’ in a partition action is the proper distribution of the ‘respective shares and interests in said property by the ultimate judgment of the court.’” This sometimes will require that ‘controversies’ be ‘litigated’ to correctly determine those shares and interests, but this ultimately can be for the common benefit as well. The fact that a party resists the partition does not change this.” (Orien v. Lutz (2017) 16 Cal.App.5th 957, 968 [cleaned up].) Defendant contends its “defense was vital to discern and prove the true owner of the property was Intervenor Kathy Nguyen and therefore was for the common benefit of the property. Le’s actions contributed to the resolution of the ownership dispute concerning
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